

ZEMPAA DIGITAL CITY – TERMS AND CONDITIONS (CUSTOMERS)

These Terms and Conditions (“Terms”) govern access to and use of the Zempaa Digital City platform, including the mobile application, website, wallet, and related services (collectively, the “Platform”).

By creating an account, clicking “I Agree,” or using the Platform, you acknowledge that you have read, understood, and agreed to be bound by these Terms.

If you do not agree, do not use the Platform.

1. Definitions

“Zempaa,” “We,” “Us,” or “The Company” means Zempaa E-Commerce Limited, incorporated under the laws of the Federal Republic of Nigeria.

“Customer” or “You” means any individual or entity that books or pays for services on the Platform.

“Service Provider” means an independent third party offering services through the Platform.

“Service” means any task, job, or offering booked through the Platform.

2. Nature of the Platform

Zempaa is a digital marketplace that connects Customers with independent Service Providers. Zempaa does not provide services directly and is not an employer, partner, agent, or contractor of any Service Provider.

Service Providers are solely responsible for service quality, delivery, safety, tools, conduct, and legal compliance. Zempaa’s role is limited to platform access, payment processing, verification, monitoring, and dispute resolution.

3. Eligibility and Account Use

You must be at least 18 years old to use the Platform. You agree to provide accurate, current, and complete information and to keep your account credentials secure. You are responsible for all activity conducted through your account.

Zempaa reserves the right to suspend or terminate accounts that provide false information or misuse the Platform.

4. Bookings and Service Process

Customers may browse Service Providers, receive price offers, select an offer, and make payment through the Platform. Service Providers are expected, but not guaranteed, to submit price offers within 15–30 minutes.

Once payment is confirmed, a binding service agreement exists directly between the Customer and the Service Provider, subject to these Terms and Zempaa's policies.

All communication must remain within the in-app chat. Sharing or requesting personal contact information outside the Platform is strictly prohibited.

5. Payments and Wallet

All payments must be made through Zempaa's in-app wallet or approved payment gateways such as Payscale. Payments made outside the Platform are prohibited and void Zempaa's ability to assist with disputes.

Wallets may be subject to maintenance or service charges. Any applicable charges will be disclosed in-app prior to deduction. Pricing updates do not affect confirmed bookings.

Approved refunds are processed using the original payment method.

6. Cancellations and Refunds

Refunds and cancellations are governed by Zempaa's Customer Service and Refund Policy, including the following:

- Refund requests must be submitted within 48 hours of booking, or within 12 hours for bookings scheduled within 24 hours
- Cancellation before payment attracts no penalty
- Cancellation at least 24 hours before service may be eligible for an 80% refund
- Last-minute cancellations (less than 24 hours) are non-refundable unless a valid, verifiable reason is approved
- Defective or improperly delivered services may qualify for partial refunds after investigation

All refund decisions made by Zempaa are final.

7. Customer Obligations

Customers agree to:

- Provide accurate booking and personal information
- Communicate respectfully and only through the Platform
- Respond reasonably to Service Provider inquiries
- Respect scheduled service times
- Avoid fraud, abuse, harassment, or policy circumvention
- Submit complaints honestly with supporting evidence

Violation may result in suspension, loss of refund rights, or account termination.

8. Quality Assurance and Monitoring

Zempaa verifies Service Providers and monitors performance through ratings, feedback, and complaints. Monitoring does not constitute a guarantee of service quality or create liability for service outcomes.

9. Prohibited Conduct

Users may not:

- Share personal contact details
- Harass, threaten, or abuse others
- Misrepresent identity or services
- Attempt off-Platform payments
- Upload false evidence or stolen content
- Request or provide illegal services

Violations may result in immediate termination and legal action.

10. Data Protection

Zempaa processes personal data in accordance with applicable Nigerian data protection laws. Data is not sold or shared without consent except where required by law. All communication must remain on the Platform.

11. Intellectual Property

All Platform content belongs to Zempaa or its licensors. Service Provider content remains the property of the Provider but may be displayed on the Platform. Customers may not copy or redistribute content without permission.

12. Limitation of Liability

To the fullest extent permitted by law:

- Zempaa is not liable for acts or omissions of Service Providers
- Zempaa is not liable for indirect or consequential damages
- Zempaa's total liability is limited to the amount paid for the affected Service

Nothing excludes liability for proven gross negligence or willful misconduct by Zempaa.

13. Suspension and Termination

Zempaa may suspend or terminate access immediately for fraud, abuse, policy violations, or legal risk. Customers may close their accounts at any time.

14. Amendments

Zempaa may update these Terms at any time. Changes take effect once published on the Platform. Continued use constitutes acceptance.

15. Governing Law and Disputes

These Terms are governed by the laws of the Federal Republic of Nigeria. Disputes shall first be resolved through Zempaa's internal dispute process before proceeding to a court of competent jurisdiction in Nigeria.

16. Contact

Support is available via in-app chat or email: zempaastores.ng@gmail.com